

Tentative Rulings for July 17, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2408394	DESERT HEALTHCARE DISTRICT VS ALL PERSONS INTERESTED IN THE MATTER HEREIN DESCRIBED LEASE PURCHASE TRANSACTION AND RELATED CONTRACTS AND OBLIGATIONS OF DESERT HEALTHCARE DISTRICT WITH RESPECT TO DESERT REGIONAL MEDICAL CENTER, INC.	MOTION FOR RECONSIDERATION OF ORDERS DENYING MOTIONS TO COMPEL PRODUCTION OF DOCUMENTS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff Desert Healthcare District filed a Complaint for Validation on December 31, 2024 against all persons interested in the matter of a certain lease to purchase transaction and related contracts and obligations of Desert Healthcare District with respect to Desert Regional Medical Center. The Complaint seeks to validate the action taken by Plaintiff regarding the lease purchase agreement (LPA) and the actions of District's Board in approving a fairness opinion from an independent consultant and approving the LPA and ordering that a measure relating to approval of the LPA be placed on the ballot (Measure AA), which was approved by the voters by a margin of 72.34%.

In the instant motion, Defendant Eisenhower Medical Center ("Eisenhower") moves this Court for reconsideration of its March 10, 2026 Orders denying Eisenhower's Motion to Compel Plaintiff Desert Healthcare District's (the "District") Responses to Requests for Production and Motion to Compel Plaintiff-Intervenor Desert Regional Medical Center, Inc.'s ("Tenet") Responses to Requests for Production (collectively, the "Motions to Compel Production of Documents"). Eisenhower seeks reconsideration on a limited and targeted basis only, as to a narrowed set of requests for production ("RFPs") tailored to obtain documents directly bearing on the dispositive factual and legal issues before the Court.

Plaintiff Desert Healthcare District and Plaintiff-Intervenor Eisenhower oppose. They ask the Court to reject Eisenhower's request to reconsider its denial of Eisenhower's motion to compel the production of documents based on a subsequent summary judgment motion ruling. In its March 10, 2026 Order, the Court denied in full Eisenhower's Motions to Compel further responses to Requests for Production served on both the Desert Healthcare District and Desert Regional Medical Center, Inc. finding that Eisenhower's requests for production were overbroad and irrelevant and effectively a fishing expedition. (Garlick Decl. Ex. 1 [3/10/2026 Hrg. Tr.] at p. 25:22-26:2.) In so ruling, the Court recognized that validation actions are required to proceed expeditiously and a Court's evaluation in validation actions is typically limited to what evidence was before the agency, i.e. the documents contained in the administrative record. (Id. at p. 8:6-12.) Three weeks after denying the motion for summary judgment, the Court issued three additional discovery rulings that are entirely consistent with the order that Eisenhower is now asking this Court to reconsider. In its April 14 and 15 rulings, the Court denied Eisenhower's motions to compel with - 5 - OPPOSITION TO MOTION FOR RECONSIDERATION 1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 respect to all of Eisenhower's requests for admission and all but one interrogatory for the same reasons the motion to compel the requests for production was denied. In the subsequent rulings, the Court took a narrow view of relevance consistent with the order on the RFPs.

Motion for Reconsideration

A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.’” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

Here, moving Defendant has not cited any new or different facts, circumstances or law that would allow this Court to change its prior ruling on March 10, 2026. As responding Plaintiffs point out, the instant request is not actually a request for reconsideration, but instead seeks for the court to rule on discovery requests, albeit narrower in scope ones, that have not been served. A motion for reconsideration is not the proper vehicle for the court to rule on the instant request.